

PROCEDURES FOR STUDENT DISCIPLINARY APPEALS TO SCHOOL BOARD

This policy governs the procedure for appeals to, and hearings by, the Loudoun County Public Schools (LCPS) full School Board or the Student Behavior and Accountability Committee (SBAC), a three-member committee thereof, to review a decision by the Superintendent or designee to long-term suspend, reassign, exclude, or recommend the expulsion of a student. When such an appeal is filed, the full School Board or SBAC, as applicable, will review and affirm, modify, or annul the disciplinary sanction imposed by the Superintendent or designee. Neither the full School Board nor SBAC will consider, modify, or annul the Superintendent or designee's finding that the student violated School Board policy.

A. Right to Appeal. A student's long-term suspension, reassignment, exclusion, or recommendation for expulsion may be appealed to SBAC, which will consider the appeal at a student disciplinary hearing. To exercise the right to appeal, the student or the student's parent(s) or guardian(s) must submit to the Superintendent's designee a written appeal within five (5) business days of receiving written notice of the imposed disciplinary sanction ("the sanction").

1. To be reviewable by SBAC, the appeal must challenge the specific sanction (i.e., the long-term suspension, reassignment, exclusion, or recommendation for expulsion). SBAC will not review an appeal that solely challenges other disciplinary consequences, such as the initiation of student support or safety plans, a no-contact order, community service or restitution.

2. Any intervention assigned in conjunction with the sanction, such as an assignment to the LCPS Substance Use Education Program, will also be reviewed by SBAC and may be affirmed, modified, or annulled.

3. An appeal resulting from a decision by the Superintendent or designee to extend a student's suspension for more than ten (10) school days in conjunction with a recommendation for expulsion will be considered by SBAC as part of the expulsion hearing unless SBAC, at its discretion, decides to consider the suspension as a separate issue.

B. Notice of Hearing by SBAC. The Superintendent or designee will provide to the party making the appeal: 1) written notice of the time and place for the hearing before SBAC; 2) a copy of this policy; and 3) a redacted copy of the Appeal Packet that is provided to SBAC. The Superintendent or designee will also inform the party making the appeal of the availability of the interpreter services set forth below.

1. Upon request by the student, parent(s) or guardian(s) for whom English is not the primary language, LCPS will provide reasonable interpretation services to assist

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with each of the elements in this policy including, but not limited to, understanding notices, submitting requests, and participating in hearings, provided that such interpreter will not serve as an advocate at any hearing. Written notice of the availability of these services will be included as part of all notices provided under this policy.

C. Procedures for a Hearing Before SBAC. When a written appeal is filed, a hearing before SBAC will be conducted as set forth below:

1. In General. The hearing will be conducted in closed session. One SBAC member will serve as the Chair. The Superintendent or designee will be responsible for preparing and presenting the case in support of the sanction and may be assisted by other LCPS representatives. SBAC may be assisted by the School Board's attorney. The student, parent(s) or guardian(s) may be assisted by legal counsel or other representative, as they deem appropriate.

2. Evidence and Relevant Student Information. The Superintendent or designee; LCPS employees assisting the Superintendent or designee; the student, parent(s) or guardian(s), and their representative will have the right to present evidence and refer to relevant student information.

- a. Documentary Evidence. Any documentary evidence not referenced or included as part of the Appeal Packet may be offered at the discretion of SBAC.
- b. Testimony. Any party may call witnesses to testify as to relevant facts and/or on behalf of the student's character. However, SBAC may limit the number of character witnesses if their testimony is cumulative. Any party or witness who provides testimony may be cross-examined. SBAC members may question parties and witnesses and recall any party or witness for further questioning.
- c. Written Statements. At SBAC's discretion, written witness statements may be accepted in lieu of personal testimony.
- d. Student Record. The student's attendance; academic performance; and the fact of, and reasons for, any past disciplinary sanction may be presented to SBAC. However, the facts and findings surrounding any past disciplinary sanction will not be a subject of inquiry at the hearing.

3. Arguments. The Superintendent or designee; LCPS employees assisting

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the Superintendent or designee; the student, parent(s) or guardian(s), and their representative will have the right to briefly summarize their arguments as to why the sanction should be affirmed, modified, or annulled.

4. Deliberations. After the presentation of evidence by all parties (including testimony, cross-examination, and documents) and summations by the parties, SBAC will deliberate. The School Board's attorney will remain present during deliberations solely to answer legal questions from the Committee. If SBAC opts to recall any person for further questioning, the student, parent(s) or guardian(s), their representative, the Superintendent or designee, and School Division employees will be readmitted to the hearing.

5. Nonattendance. Failure of the student and/or the parent(s), guardian(s), and/or their representative to attend a scheduled hearing will not prevent SBAC from considering the sanction and making a decision. However, at least one business day prior to the hearing date, the party requesting the hearing may request a continuance, with good cause shown. The SBAC Chair will decide whether the request will be granted.

D. SBAC's Decision. Within thirty (30) days of receipt of the appeal, SBAC's decision to affirm, modify, or annul the sanction will be voted upon in open session and confirmed in writing to the party making the appeal. The letter affirming, modifying, or annulling the sanction will include the following:

1. Notification of the length of any imposed sanction;
2. Information concerning the availability of community-based educational, alternative education, or intervention programs and a statement that the costs of any such community-based program will be borne by the student's parent(s) or guardian(s);
3. A statement that the student is eligible to return, as appropriate, to a comprehensive LCPS school or an LCPS alternative education program during any sanction or upon the expiration of any sanction, subject to any specified conditions; and
4. For any expulsion during or after which the student is not eligible to attend any LCPS school or program, a statement providing notice that the student may petition the School Board for readmission one calendar year from the date of the student's expulsion and of any conditions under which readmission may be granted.

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E. Implementation of SBAC's Decision. If SBAC's decision is unanimous, it is final and will be implemented immediately. If SBAC's decision is not unanimous it will be implemented immediately and remain in effect unless and until it is modified or annulled upon timely appeal to the full School Board.

F. Appeal of SBAC's Non-Unanimous Decision. The student or the student's parent(s) or guardian(s) have the right to appeal a non-unanimous SBAC decision to the full School Board. To exercise this right to appeal, the student, parent(s) or guardian(s) must submit an appeal to the Superintendent's designee within five (5) business days of receiving written notice of SBAC's non-unanimous decision. Included with the appeal, the party making the appeal should explain why SBAC's decision should be reversed or modified and should also attach any documentation that explains or supports the appeal.

1. The Superintendent or designee will submit the administration's position in writing to the full School Board within five business days of receiving the appeal. A copy will be provided to the party making the appeal, who will have three business days to submit a written response. SBAC's written decision, the written appeal, the administration's position, and any response to the administration's position from the party making the appeal will supplement the Appeal Packet provided to the full School Board.

2. Unless otherwise determined at the School Board Chair's discretion, the appeal will be conducted by the full School Board on the written record. In the event of a hearing before the full School Board, such hearing will be conducted in accordance with the procedures set forth in Section C. 1 through 5 above.

3. Within thirty (30) days of receipt of the written appeal, the decision of the full School Board to affirm, modify, or annul the sanction will be voted upon in open session and confirmed in writing to the party making the appeal within thirty (30) days of receipt of the appeal. The letter affirming, modifying, or annulling the sanction will include the information set forth in Section D. 1 through 4.

G. Unappealed Expulsion Recommendation. Any recommendation for expulsion made by the Superintendent or designee must be confirmed or denied by the School Board or a committee thereof. Therefore, in instances where no appeal is made, upon closure of the appeal period, SBAC will consider and make a decision regarding the expulsion recommendation solely on the basis of information provided by the Superintendent or designee at a closed meeting.

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1. SBAC's decision to impose an expulsion or a lesser sanction will be voted upon in open session and confirmed in writing to the student and the student's parent(s) or guardian(s). The letter enacting an expulsion or lesser sanction will include the information set forth in Section D. 1 through 4.
2. SBAC's decision is final and will be implemented immediately.

Former Policy 2-27

Adopted: 8/10/76

Revised: 9/13/88, 6/22/93, 1/27/98, 6/23/98, 12/9/03, 10/13/09, 2/22/11, 12/3/19

Current Revision: 02/25/25

Legal Refs: Code of Virginia §§ [22.1-277.05](#); [22.1-277.06](#); [22.1-277.2](#); [22.1-277.2:1](#)

Cross Ref: Policy [2310](#), Committees of the School Board; Policy [8210](#), Introduction to Student Discipline; Policy [8220](#), Student Disciplinary Consequences; Policy [8225](#), Re-Admission, Exclusion or Admission of Students